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Rm 374244
California Regional Water Quality Control Board
Central Valley Region

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Edmund G. Brown Jr.
Governor

16 June 2011

Mr. Marvin Palmer, Secretary
Leland Meadow Water District
9406 Bainbridge Place
Stockton, CA 95209

NOTICE OF APPLICABILITY

***WATER QUALITY ORDER NO. 97-10-DWQ, GENERAL WASTE DISCHARGE
REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER
TREATMENT SYSTEMS, LELAND MEADOW WATER DISTRICT, WASTEWATER
TREATMENT FACILITY, TUOLUMNE COUNTY***

The Leland Meadow Water District Wastewater Treatment Facility (WWTF) consists of septic tanks followed by an activated sludge plant and ponds. Waste Discharge Requirements (WDRs) Order No. 94-358 currently regulates the discharge. The WDRs are obsolete, inconsistent with current plans and policies of the California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), and need to be updated.

On 11 April 2011, Central Valley Water Board staff received a letter from you, requesting coverage of the discharge under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order).

Based on the findings of the original WDRs, information from self-monitoring reports and facility file, and information provided in your request, the discharge meets the conditions of the General Order. The discharge is hereby covered under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems*. The facility is assigned Notice of Applicability (NOA) No. 97-10-DWQ-R5080.

The following requirements contained within the General Order apply to the subject discharge:

1. All Section A Prohibitions,
2. Section B Requirement Nos. 1.a-1.d, 2.a-2.c, 3.b-3.c, 4, and 6.a-6.d;
3. All Section C Ground Water and Surface Water Limitations;
4. Section D Provision Nos. 1.a-1.v, 2.a-2.b, and 3.a-3.b; and
5. All Attachment B Standard Provisions and Reporting for Waste Discharge Requirements.

California Environmental Protection Agency

The following sections of Attachment A Monitoring and Reporting Program (MRP) No. 97-10-DWQ, apply to the discharge:

1. Septic Tank Monitoring,
2. Activated Sludge Systems Monitoring,
3. Aerated Pond Systems Monitoring,
4. Disposal Monitoring, and
5. Reporting.

LOCATION

The Leland Meadow Water District operates the WWTF in Section 3, T4N, R18E, MDB&M. The surface water drainage for the area contributes to Leland Creek.

The WWTF is in the San Joaquin River Basin. The *Water Quality Control Plan for the Sacramento and San Joaquin River Basins, Fourth Edition* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

DESCRIPTION

The treatment and disposal facilities consist of two septic tanks in series for primary clarification, bubble diffusers for re-aeration and stabilization, an activated sludge tank, and ponds for evaporation and percolation. These facilities accept wastewater from condominiums, private homes, and a snow play area.

Peak flow for the treatment and disposal facilities occurs in the winter and is about 14,000 gpd. During the summer months, flows are much lower, resulting in about 2,000 gpd of wastewater discharge.

The natural surface water near the site is Leland Creek. The beneficial uses of Leland Creek are municipal, industrial, and agricultural supply; recreation; esthetic enjoyment; navigation; groundwater recharge; fresh water replenishment; hydropower generation; and preservation and enhancement of fish, wildlife, and other aquatic resources.

The beneficial uses of underlying groundwater identified in the Basin Plan are: municipal and domestic supply, industrial service supply, industrial process supply, and agricultural supply.

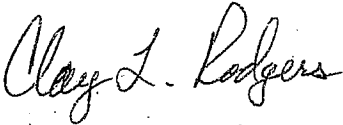
FACILITY-SPECIFIC REQUIREMENTS

In addition to the above requirements, the Leland Meadow Water District must comply with the following:

1. Discharge of wastewater at a location or in a manner different from that described above is prohibited.
2. The WWTF shall be operated in accordance with the requirements contained in the General Order.

3. The waste discharge shall not enter surface waters or surface water drainage courses.
4. The Leland Meadow Water District shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board), if applicable, until the NOA is officially terminated.
5. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its monitoring and reporting requirements, could result in enforcement actions, as authorized by provisions of the California Water Code.

If you have any questions regarding this NOA, please contact Dale Harvey at (559) 445-6190.



for Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ